

## 26NWLC18016 26NWLC18016

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-07-29

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26NWLC18016: CAPITAL ONE, N.A. vs PETE RODRIGUEZ

### Tentative Ruling:

The Court has read and considered the moving papers filed by Defendant Pete Rodriguez ("Defendant"), the opposition filed by Plaintiff Discover Bank ("Plaintiff"), and the relevant court records.

Defendant's Motion to Quash Service of Summons ("Motion") was initially scheduled for hearing on May 28, 2026. The Court continued the hearing on the Motion to July 29, 2026.

Defendant specially appears and moves to quash service of summons pursuant to Code of Civil Procedure section 418.10. Defendant contends he was not properly served and that the Court therefore lacks personal jurisdiction over him.

Evidence Code section 647 creates a rebuttable presumption that service was valid when, as here, a registered process server files a proof of service. The party challenging service must present sufficient evidence to rebut that presumption. (Evid. Code, §§ 647, 660.)

A Proof of Service of Summons reflecting personal service by a registered process server was filed on April 27, 2026, creating the presumption under Evidence Code section 647. The proof of service states that Defendant was personally served on April 24, 2026, at 10:25 a.m. The proof of service, however, provides no description of the person served and includes no additional details regarding the manner of service, which is unusual.

Defendant submits a declaration signed under penalty of perjury stating that the process server left the documents with Defendant's mother at her residence located at 13812 Chilcot St., Baldwin Park, CA 91706. Defendant further declares that he does not live at that address and did not reside there at the time the documents were left. Even assuming arguendo that the address were Defendant's residence, the proof of service does not indicate substituted service. On this record, the Court finds Defendant has rebutted the presumption of personal service.

Accordingly, Defendant's Motion to Quash Service of Summons is GRANTED.

The clerk shall give notice.